

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

CIVIL REVISION NO. 1570 OF 2016

Al-Hajj Harun-Ar-Rashid and another
----- Plaintiff-Appellant -Petitioners
=Versus=
Md. Nuruzzaman Khan and others
----- Defendants-Respondents -Opposite
Parties

Mr. Md. Imam Hossain, Advocate
----- For the Petitioners
Mr. Md. Nurul Amin, Advocate
----- For the Opposite Party No. 1

Heard on: 23.10.2017

Judgment on: 22.11.2017.

At the instance of the present Plaintiff-appellant- petitioners, Al-Hajj Harun-Ar-Rashid and another, this Rule has been issued calling upon the opposite party Nos. 1-6 to show cause as to why the impugned judgment and order dated 12.04.2016, passed by the learned 1st Additional District Judge, Dhaka, in Miscellaneous Appeal No. 280 of 2015 upholding the order dated 05.08.2015 passed by the Senior Assistant Judge, 4th Court, Dhaka in Title Suit No. 310 of 2012, rejecting the application for temporary injunction should not be set aside and/or pass such other or further order or orders as to this court may seem fit and proper.

The relevant facts for disposal of this Rule, *inter-alia*, are that the present petitioners as the plaintiffs filed the Title Suit No. 310 of 2012 in the court of learned Assistant Judge, Court No. 4, Dhaka, for cancellation register Sale Deed No. 679 dated 12.02.1987 and Sale Deed No.3498 dated 26.11.1987 as being created by practicing fraud described in schedule “Ga” and “Gha” of the plant. The plaint contains that one Al-Hajj Harun-Ar-Rashid created the Waqf Deed No. 2132 dated 29.01.1973 for the land measuring 5 kathas under the name and style of “Al-Hajj Harun-Ar-Rashid Waqf Estate Jame Mosjid” situated in 28-A/1, Toynobi Circular Road, Fakirapool, Motijhel, Dhaka. The Mosque is run by Mutawalli, Vice Chariman and Secretary who are the members of “Mosjid Committee” who constructed a four storied building for peaceful religion activities including daily prayers. Since the year of 2000 the present opposite party No. 1, Md. Nuruzzaman Khan collected materials for making a iron stair which has created obstacle for the Mosque’s religion activities. The present petitioners came to know about a claim by the present opposite party No. 1 of two kathas of land pursuant to the deed dated 12.02.1987 and 26.11.1987 to have been executed by Al-Hajj Harun-Ar-Rashid, thus the suit has been filed.

The present opposite party No. 1 as the defendant has contesting the suit by filing a written statement contending, *inter-alia*, that said Al-Hajj Harun-Ar-Rashid executed a deed for land measuring 3.47 kathas for the purpose of creating a waqf but he sold

later on two khatas of land to him by two register deeds mentioned above and he mutated his name with the Government authorities for record of right in his name. He also opened a separate City Corporation Holding number being 28/A-6, Toynobi Circular Road, Fakirapool, Motijheel, Dhaka and there are two shops namely “Nova Pharma” and “Nabin Corporation” under his ownership. There were some disputes as to construction of a box culvert road by WASA after demolition of some toilets of the said Mosque but the matter was later on settled by mutual understand. The present opposite party No. 1 started to construct a multistoried building in his part of land. However, the Mosque committee filed the separate cases against that. The suit is pending for disposal.

The present petitioners filed an application under Order 39 Rule 1 and 2 of the Code of Civil Procedure for a temporary injunction in the said court which was heard by the learned Assistant Judge. After considering evidence both documentary and oral submissions the application was rejected by the judgment and order dated 05.08.2015. Being aggrieved the present petitioners preferred the Miscellaneous Appeal No. 280 of 2015 in the court of learned District Judge which was heard by the learned Additional District Judge, Court No. 1, Dhaka by passing a concurrent judgment and order dated 12.04.2016 disallowing the appeal. This revisional application has been filed challenging the legality of the said impugned judgment of the appellate court below and the Rule was issued thereupon.

Mr. Md. Imam Hossain, the learned Advocate appearing for the petitioners submits that the learned Court below commits error of law resulting in an error in the decision occasioning failure of justice in giving the judgment and order without applying his mind to the facts and circumstances and materials on record since the entire property is waqf property which cannot be transferred in any circumstances without having a permission of the concerned authority and also fails to take into consideration that the property is under waqf property for around 43 years and from that time the masjid has been used for religious purposes.

The learned Advocate further submits that the learned Court below fails to understand and appreciate that there is a prima facie case in favour of the petitioners thus fails to grant an ad-interim injunction. Therefore, the learned courts below committed error of law resulting in an error in the decision occasioning failure of justice to take into consideration that some of the shops of the respondent No. 1 one under possession and control of the masjid committee.

The Rule has been opposed by the opposite party No. 1.

Mr. Md. Nurul Amin, the learned Advocate, appearing for the opposite party No. 1 submits by filing a counter affidavit contending, *inter-alia*, that the learned trial court considered the documentary and other evidence in order to decide upon the application filed for temporary injunction and rejected by the order dated 05.08.2015. The learned appellate court below concurrently found that the petitioners

one admittedly not in possession of the suit land and there was no prima facie case on behalf of the petitioners thus concurrently found to disallow the appeal by the impugned judgment and order. Therefore, no interference from this court is called for.

The learned Advocate further submits that the said Al-Hajj Harun-Ar-Rashid firstly created a waqf deed on 29.01.1973 for the land measuring 50" × 50" equal to 5 kathas which is a wrong calculation as to the measurement of land thus the said Al-Hajj Harun-Ar-Rashid corrected the mistake as to the measurement of land by a register deed dated 10.02.1998 by specifying the land 3.47 kathas for Mosque and two khatas in favour of the present opposite party No. 1. Thus, the opposite party is in absolute possession of the suit land therefore no interim order of injunction should be granted against the present opposite party and the Rule should be discharged.

Considering the above submissions of the learned Advocates and not considering the revisional application challenging the legality of the impugned judgment and order along with the annexures therein and also considering supplementary and the counter affidavit filed by the respective parties, it appears to me that the present petitioners filed the suit on behalf of "Al-Hajj Harun-Ar-Rashid Waqf Estate Jame Masjid" for cancelling two deeds claimed to have executed by the vendor of petitioners (Al-Hajj Harun-Ar-Rashid) in favour of the present opposite party No. 1 Md. Nuruzzaman Khan. This suit is pending and the present opposite party No. 1 as the defendant has

been contesting the suit by filing a written statement. In the said pending suit the plaintiff petitioners filed an application for temporary injunction in order to restrain the present opposite party No. 1 from constructing a multi stored building and also from causing any trouble to the Mosque activities including prayers of the local Musullies.

This court will only consider the necessity of an interim order of temporary injunction not the merit of the suit which is to be decided by the court concern. There is a settle principle that an injunction must claim by a party who is in possession of the suit land. The admitted position between the parties is that Al-Hajj Harun-Ar-Rashid was the original owner of the suit land claimed by both the parties. The petitioners claimed that the said Al-Hajj Harun-Ar-Rashid transferred the entire 5 kathas of land to create a Waqf Estate in the year of 1973. But on my several requests to the learned Advocate for the petitioners he could not provide any documents or even any registration number with the Waqf Administrator as required by the provisions of the Waqf Ordinance, 1962. Therefore, a question remains to be answered whether the Waqf created by Al-Hajj Harun-Ar-Rashid could be recognized as a Waqf Estate without any enlistment/registration with the Bangladesh waqf Administrator? The simple answer is “No” under the statutory provision of law.

Another vital issue in this case is that when the owner of the suit land, namely Al-Hajj Harun-Ar-Rashid, transferred the land on 29.01.1973 in order to create a Waqf Estate the land was correctly

described in the schedule of the deed but mentioning incorrect measurement of land. However, it was subsequently corrected and amended by another register deed dated 10.02.1998. Therefore, the another issue is to be decided by the learned trial court as to whether the said Al-Hajj Harun-Ar-Rashid transferred two kathas of land owned by him by the valid documents being deed dated 12.02.1987 and 26.11.1987 in favour of the present opposite party. These are the matters among others the learned trial court needs to decide on merit.

Regarding the matter of temporary injunction, the plaintiff petitioners are required to prove an actual possession upon the suit land and also a prima-facie arguable case, convenience and inconvenience of the parties and also the loss and suffering of the parties. In this regard, I have carefully examined the plaint and written statement and also application for temporary injunction and the written objection annexed in this revisional application. I find sufficient information that there are disputes between the parties for a long period of time, as such, a huge number of cases have been either concluded or continuing which should be settled in the present case. I have also considered the impugned judgment concurrently rejecting the application for temporary injunction prayed by the present petitioners. I consider that an injunction to restrain the present opposite parties from undertaking any activities to change the nature and character of the disputed land during the pendency of the suit in the trial court would not be helpful for either of the parties. Rather, the

parties should take appropriate steps for a expeditious disposal of the suit in order to settle the disputes between them including the legality and validity of the deed dated 29.1.1973 in favour of the petitioners and also deeds dated 12.02.1987 and 26.11.1987 in favour of the present opposite party No. 1. But the learned trial court has to keep in mind the provisions of the Waqf Ordinance as well as the provisions of the Transfer of Property Act before coming to a conclusion regarding the disputes between the parties.

In view of the above discussions, I am of the opinion that the learned courts below committed no error of law by concurrently rejecting the prayer for temporary injunction, however, for the interest of justice and earliest possible disposal of the suit, I am inclined to direct upon the parties to maintain status quo regarding the possession and position as well as the present nature and character of the property involved in the above mention deeds executed by the common vender namely Al-Hajj Harun-Ar-Rashid.

Accordingly, I am inclined to dispose of the Rule.

In the result, the Rule is disposed of with the following directions.

The present petitioners and opposite parties, particularly, the opposite party No. 1 and all other parties concern are hereby directed to maintain status-quo regarding the position and possession of the land subject matter of the Title Suit No. 310 of 2012 as well as to

maintain status quo regarding the existing nature and character of the property and land involve until the disposal of the suit finally.

The parties are also hereby directed not to disturb or caused any suffering for either of the parties until the Title Suit No. 310 of 2012 is finally decided. The learned Senior Assistant Judge, Court No. 4, Dhaka is hereby directed to conclude the decision of the Title Suit No. 310 of 2012 within 6(six) months from the date of receipt of this judgment and order without failure and without allowing any unnecessary adjournment as both the learned Advocates appearing in this court have given their commitment to advice to their respective parties.

The interim order of status-quo passed at the time of issuance of the Rule in respect of the possession and position of the case property is hereby recalled and vacated.

The Section is directed to communicate this judgment and order to the learned Senior Assistant Judge, 4th Court, Dhaka immediately.